

25STCV22910 25STCV22910

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-10

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Case Number: 25STCV22910 Hearing Date: September 10, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 309

TENTATIVE RULING

MATTHEW MASSMAN, et al.

vs.

6122 WILSHIRE BOULEVARD PROPERTY

Case

No.: 25STCV22910

Hearing Date: September 10, 2026

Plaintiffs'

motion to vacate the protective order precluding the deposition of Said I.

Kakim is GRANTED. The Court sanctions Defendants, jointly and severally with

counsel, \$1,050, due within 20 days of entry of this order.

On 8/4/2025,

Plaintiffs Matthew and Marissa Long (collectively, Plaintiffs) filed suit

against 6122 Wilshire Boulevard Property (6122 or Defendant), alleging: (1)

breach of contract; (2) breach of warranty of habitability; (3) breach of

statutory warranty of habitability; (4) breach of the covenant of quiet

enjoyment; and (5) private nuisance.

On 5/13/2026,

Plaintiffs moved to vacate the protective order precluding the deposition of

Said I. Kakim.

Discussion

Plaintiffs

seek to vacate the protective order precluding the deposition of Said I. Kakim,

on the grounds that the protective order was entered based on

misrepresentations by Defendant. More specifically, Defendant misrepresented

that Mr. Hakim was not actively involved in the management of the partnership

or its properties, and that his wife Ms. Hakim has taken over management of the

partnership and operations over the last two years.

In support,

Plaintiffs submitted evidence to show that Mr. Hakim remains actively involved

in partnership affairs and that Ms. Hakim did not, in fact, assume complete management of Defendant's operations for the prior two years as represented to the Court. (See Newton Decl., Deposition of Tanya Hakim.)

During her

6/29/2026, deposition, Ms. Hakim admitted that Mr. Hakim participated in the partnership's decision to end its contractual relationship with its property management company and Co-Defendant, Beach Front Property Management, Inc. (Beach Front), "within the past few months," and enter into a new contract with a different property management company, Cannon Management. Ms. Hakim also showed a lack of knowledge and familiarity with operations.

In

opposition, Defendants argue that the grounds for the protective order remain intact because there is no evidence that Mr. Hakim is not in poor health and the information can be obtained another way.

However, this

ignores that the Court's decision rested not on Mr. Hakim's health, alone, but the fact that Defendants represented that his health had disabled him from involvement in, and knowledge of, the facts relevant to this dispute. Plaintiffs' evidence suggests that he is not only of sound enough health to participate, but has in fact remained involved in transactions relevant to this dispute.

Moreover, Ms. Hakim's lack of knowledge and familiarity with facts relevant to this case dispels the previous belief that the information could be obtained through other means without involving Mr. Hakim.

The trial

court retains authority to revisit interim discovery rulings when

later-discovered facts demonstrate that the prior ruling was based upon a

materially incomplete or inaccurate factual record. (Le Francois v. Goel

(2005) 35 Cal.4th 1094, 1108.) Because the protective order was entered without

prejudice and subsequent discovery has revealed facts directly contradicting

the evidentiary showing on which the order was granted, this Court retains

inherent authority to revisit and modify its prior discovery ruling.

Based on the

foregoing, Plaintiffs' motion to vacate the protective order precluding the

deposition of Said I. Kakim is granted. The Court finds no substantial

justification for Defendants' previous representations and sanctions

Defendants, jointly and severally with counsel, \$1,050 (\$350/hr x 3 hr), due

within 20 days of entry of this order.

It is so ordered.

Dated: September

, 2026

Hon. Jon R.

Takasugi

Judge of the

Superior Court

Parties who intend to submit on this tentative must

send an email to the court at smcdept17@lacourt.org

by 4 p.m. the day prior as directed by the instructions provided on the court

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on the tentative, the party's email must include the case number and must

identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this

tentative as the final order. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. For more information, please contact the court clerk at (213)

633-0517.

Superior Court of California

County of Los Angeles

DEPARTMENT 309

TENTATIVE RULING

MATTHEW MASSMAN, et al.

vs.

6122 WILSHIRE BOULEVARD PROPERTY

Case No.: 25STCV22910

Hearing Date: September 11, 2026

Plaintiff's motion for terminating sanctions is MOOT. However, Defendant is sanctioned, jointly and severally with counsel, \$1,050 (\$350/hr x 3), due within 20 days of entry of this order.

On 8/4/2025, Plaintiffs Matthew and Marissa Long (collectively, Plaintiffs) filed suit against 6122 Wilshire Boulevard Property (6122 or Defendant), alleging: (1) breach of contract; (2) breach of warranty of habitability; (3) breach of statutory warranty of habitability; (4) breach of the covenant of quiet enjoyment; and (5) private nuisance.

On 6/1/2025, Plaintiff moved for terminating sanctions against Defendant.

Discussion

Plaintiff seeks terminating sanctions based on Defendant's failure to produce Tanya Hakim for deposition on 5/28/2026, despite a Court order to do so. (See 5/27/2026 Minute Order).

Plaintiff contends that "Defendant previously argued to this Court on May 27, 2026, that Tanya Hakim needed to be in Los Angeles on May 28, 2026, to care for her purportedly sick mother, but counsel for Defendant stated later that day after the hearing to counsel for Plaintiffs that Tanya Hakim would not appear because she was "indisposed and out of town." See, Declaration of Jason T. Newton, Exhibit E." (Motion, 3: 6-10.)

In opposition, Defendant argues that motion is moot as the deposition of Tanya Hakim has since taken place. However, Defendant offers inadequate justification for the failure to timely produce Ms. Hakim for deposition in keeping with this Court's order. Accordingly, monetary sanctions are justified.

Plaintiff's motion for terminating sanctions is moot. However, Defendant is sanctioned, jointly and severally with counsel, \$1,050 (\$350/hr x 3), due within 20 days of entry of this order.

It is so ordered.

Dated: September , 2026

Hon. Jon R. Takasugi
Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.